

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR FEBRUARY 5, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1A. **MSP20-01128 RE DONALD DECKER FAMILY TRUST DT 4-22-08**
9:00 AM HEARING IN RE: MOTION TO EXPUNGE NOTICE OF PENDENCY OF ACTION (LIS PENDENS AS TO
DISCOVERY BAY PROPERTY); REQUEST FOR SANCTIONS IN THE AMOUNT OF \$2,060 AGAINST NANCY
DECKER; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF MICHAEL A. SCHREIBER,
FILED ON 9-12-25 BY RONALD DECKER

Need:
Appearances

1B. **MSP20-01128 RE DONALD DECKER FAMILY TRUST DT 4-22-08**
9:00 AM HEARING IN RE: TRUSTEE, RONALD DECKER'S NOTICE OF MOTION AND MOTION TO EXPUNGE
NOTICE OF PENDENCY OF ACTION (LIS PENDENS AS TO ISLETON PROPERTY); REQUEST FOR
SANCTIONS IN THE AMOUNT OF \$2,060 AGAINST NANCY DECKER; MEMORANDUM OF POINTS AND
AUTHORITIES; DECLARATION OF MICHAEL A. SCHREIBER, FILED 9/30/25

Need:
Appearances

1C. **MSP20-01128 RE DONALD DECKER FAMILY TRUST DT 4-22-08**
9:00 AM HEARING IN RE: STATUS CONFERENCE

Need:
Appearances

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4. 9:00 AM	P22-00938 MATTER OF: NOURI AND MEHRI SHAHABI 2000 TRUST, DATED JUNE 12, 2000 HEARING IN RE: MOTION TO COMPEL SHEILA SHAHABI'S ATTENDANCE AT DEPOSTION AND PRODUCTION OF DOCUMENTS FILED BY MIR SHAHABI ON 09/15/25
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Need:
Appearances

Notes:
Opposition filed 01/14/26 by Sheila Shahabi

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5.	P22-02048	MATTER OF: THE CHARLES R. ATCHISON, JR. AND CORINNE A. JACKSON LIVING THE CHARLES R. ATCHISON, JR. AND CORINNE A. JACKSON LIVING TRUST, DATED JULY 1, 2011, AND THEREAFTER AMENDED
9:00 AM	HEARING IN RE: FOR ORDERS INVALIDATING TRUST, FOR COPY OF TRUST & ACCOUNTING, ABUSE, REMOVING TRUSTEE FILED ON 12/19/22 BY TELISHA ATCHISON MARTIN	
	Drop, per Court approved Request for Dismissal filed 01/28/26	

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6. **P23-01804** **ESTATE OF PATRICA BYRD CANSON**
9:00 AM HEARING IN RE: PROBATE OF WILL FILED ON 10/10/2023 BY STEVEN SMITH

-- See also Line # 7, 13, 17 and 19 --

Need appearances to report status, including mediation

Notes:

- a) Will Contest filed by Aurin Canson 2-29-2024
- b) Respondent Steven A. Smith's Answer filed 10/01/24.
- c) Status Report filed by Steven A. Smith 10-10-2024.
- d) Motion to be relieved as counsel for Steven A. Smith filed 11/18/25 by Matthew B. Talbot, set 04/14/26
- e) Motion to Dismiss for Lack of Standing filed 01/02/26 by Steven A. Smith, set 05/19/26

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7A. **P23-01818** **ESTATE OF: CLARENCE CANSON**
9:00 AM HEARING IN RE: MOTION FOR ORDER TO SET ASIDE THE ORDER APPOINTING STEVEN A SMITH THE ADMINISTRATOR OF THE ESTATE FILED BY DONALD IWUCHUKWU ON 07/14/2025
--see also lines # 6, 13,17, and 19--

Need:

1. Appearances
2. Proof of mailing Notice of Hearing to all persons entitled to notice
3. Proposed Order

Notes:

- a. Opposition filed 11/17/25 by Steven A. Smith

7B. **P23-01818** **ESTATE OF: CLARENCE CANSON**
9:00 AM HEARING IN RE: MOTION FOR SANCTIONS AGAINST CHRISTIAN ANYIAM AND DONALD IWUCHUKWU IN THE AMOUNT OF \$5,632.50 REGARDING THE MOTION TO DISMISS OR, ALTERNATIVELY, MOTION TO STRIKE THE MOTION TO SET ASIDE ORDER APPOINTING STEVEN A. SMITH AS ADMINISTRATOR OF THE ESTATE FILED ON 9-12-25 BY STEVEN A SMITH

Need:

1. Appearances
2. Proposed Order

Notes:

- a. Opposition filed 01/26/26 by Donald Iwuchukwu

7C. **P23-01818** **ESTATE OF: CLARENCE CANSON**
9:00 AM HEARING IN RE: MOTION TO DISMISS OR, ALTERNATIVELY, MOTION TO STRIKE THE MOTION FOR ORDER TO SET ASIDE ORDER APPOINTING STEVEN A. SMITH AS ADMINISTRATOR OF THE ESTATE OF CLARENCE BERNARD CANSON FILED ON 9-12-25 BY STEVEN A SMITH

Need:

1. Appearances
2. Proposed Order.

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| 10.
9:00 AM | P24-00099 ESTATE OF: ROBERTA SADLER
HEARING IN RE: FIRST & FINAL REPORT OF ADMINISTRATOR ON WAIVER OF ACCOUNT & PETITION FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR & ATTORNEY; AND COMPENSATION TO ATTY FOR EXTRAORDINARY SERVICES & FINAL DISTRIBUTION FILED ON 9-12-25 BY KEVIN MEIN

Need: <ol style="list-style-type: none">1. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.3172. Declaration to state need for reserve in excess of \$2,000.00.3. Proof of mailing to all parties requesting special notice. Petition states that no Request(s) for Special Notice were filed, but case history shows one filed 10/18/24 |
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11.

9:00 AM

P24-01062

ESTATE OF: ANTHONY MARTINELLI

HEARING IN RE: PETITION FOR FINAL DISTRIBUTION WITH WAIVER OF ACCOUNTING & FOR
ALLOWANCE OF STATUTORY FEES & REIMBURSEMENT OF COSTS FILED ON 9-15-25 BY JENNIFER
MARTINELLI

Petition Approved
Proposed Order Submitted
No Appearance Required

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12.	P24-02036	MATTER OF: KELLY REVOCABLE TRUST, DATED APRIL 21, 1991 AS AMENDED AND RESTATED
9:00 AM	HEARING IN RE: PETITION TO SUSPEND AND REMOVE COSTRUSTEES; APPOINT NEUTRAL TRUSTEE; INSTRUCTIONS; ORDER INSTRUCTING REIMBURSEMENT OF FEES FILED ON 11/12/24 BY KARYN GIANNINI AND DANIEL KELLY	
Drop, per Court approved Request for Dismissal filed 11/19/25		

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13.	P24-02188	MATTER OF: CALIFORNIA REVOCABLE LIVING TRUST OF PATRICIA BYRD CANSON, DATED FEBRUARY 28, 2017
9:00 AM	HEARING IN RE: PETITION FOR ORDER DETERMINING EXISTENCE OF TRUST AND FOR ORDER DETERMINING TITLE TO PROPERTY FILED BY DONAL IWUCHUKWU ON 12/12/24 PROBATE TRUST PETITION FILED	
		--see also lines # 6, 7, 17, and 19--
	Need: 1. Appearances 2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203 3. Proposed Order	
	Notes: a. Motion for Judgement on the Pleadings filed 12/24/25 by Steven Smith, set 04/14/26 b. Motion to be Relieved as Counsel for Steven Smith filed 11/18/25, set 04/16/26 c. Petition Determining Non-existence of Trust, Terminating Trust, Compelling Accounting, Compelling Production of Information and Documents, Removing Trustee, Granting Fees filed 12/31/25 by Sheila Webb, set 05/19/26	

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14. 9:00 AM	P25-00792 MATTER OF: THE AIDA M. LIVING TRUST HEARING IN RE: PETITION TO COMPEL AND ACCOUNTING; BREACH OF FIDUCIARY DUTIES; REMOVAL OF TRUSTEE; AND FOR INSTRUCTIONS Need: 1. Appearances 2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2) 3. Proposed Order
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15. 9:00 AM	P25-01630 HEARING IN RE: PETITION FOR ORDER CONFIRMING PROPERTY OWNED BY TRUST FILED BY ROSITA O HARVEY ON 09/12/2025	MATTER OF: THE HARVEY LIVING TRUST DTD. 08/22/2012
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Need:

1. Appearances
2. Verified declaration by petitioner to include Schedule A, Schedule B, and Schedule C, which were referenced in the Petition but not attached.
3. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203
4. Proposed Order

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16. 9:00 AM	P25-01658 HEARING IN RE: PETITION FOR ORDER IRREVOCABLY ASSIGNING INHERITED IRA INTO SPECIAL NEEDS TRUST FILED BY ELIZABETH SOLOWAY ON 09/17/2025	MATTER OF: JOHN ANDRESKI SPECIAL NEEDS TRUST
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Need appearances

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17A. 9:00 AM	P24-00346 MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023 HEARING IN RE: MOTION TO DISMISS OR ALTERNATIVELY MOTION TO STRIKE THE PETITION TO INVALIDATE TRUST BASED UPON UNDUE INFLUENCE , OPPRESSION AND FRAUD FILED ON 9-12-25 BY STEVEN A SMITH --see also lines # 6,7,13 and 19-- Need: 1. Appearances 2. Verified declaration to list current addresses for Paul Andre Smith, Nicole Joie Smith, and Imani Constance Burnett. The addresses in the Notice of Hearing mailing list do not match the addresses stated in the Petition 3. Proposed Order Notes: a. Opposition filed 01/23/26 by Aurin Canson b. Motion to be Relieved as Counsel for Steven A Smith filed 11/15/25, set 04/16/26
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17B. 9:00 AM	P24-00346 MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023 HEARING IN RE: MOTION FOR SANCTIONS AGAINST METU OGIKE AND AURIN CANSON IN THE AMOUNT OF \$5,632.50 AS IT RELATES TO THE MOTION TO DISMISS OR, ALTERNATIVELY, MOTION TO STRIKE THE PETITION TO INVALIDATE TRUST FILED ON 9-12-25 BY STEVEN SMITH Need: 1. Appearances 2. Verified declaration to list current addresses for Paul Andre Smith, Nicole Joie Smith, and Imani Constance Burnett. The addresses in the Notice of Hearing mailing list do not match the addresses stated in the Petition 3. Proposed Order Notes: a. Opposition filed 01/23/26 by Aurin Canson
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19A. 9:00 AM	P24-00990 HEARING IN RE: MOTION TO QUASH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS FROM ZBS LAW LLP AGAINST STEVEN SMITH & HIS ATTY IN THE SUM OF \$2275.00 FILED ON 5-28-25 BY DONALD IWUCHUKWU	MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023 --see also line #s 6,7,13 and 17--
	Need: 1. Appearances 2. Proof of mailing to all persons entitled to notice 3. Proposed Order	
	Notes: a. Opposition filed 10/03/25 by Steven A. Smith	

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19B. **P24-00990** **MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023**
9:00 AM HEARING IN RE: STATUS FOR ORDER CONFIRMING TRUST AND TRUST ASSETS FILED BY STEVEN A.
SMITH ON 6/7/24

Need:

1. Appearances

Notes:

- a. Objection filed 10/24/24 by Aurin M.K. Canson
- b. Objection filed by Trustee Donald Iwuchukwu 10-29-2024.

19C. **P24-00990** **MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023**
9:31 AM HEARING IN RE: PETITION FOR ORDER CONFIRMING TRUST AND TRUST ASSETS FILED BY STEVEN
SMITH ON 6-7-24 PROBATE TRUST PETITION FILED

Calendared in duplicate. See line 19B

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22. 9:00 AM	MSP21-00867 ESTATE OF EDDIE WILLIAMS SR STATUS RE SETTLEMENT AGREEMENT PER STIP AND ORDER FILED 01/16/2026 Need appearances to report status of settlement agreement
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